

Ordinance No. 03
ORDINANCE PERTAINING TO UNIVERSITY EXAMINATIONS (GENERAL)

1. DEFINITIONS:

In the ordinance unless the context requires otherwise, following meaning shall apply.

- 1.1 "Regular candidate" means a person, who has prosecuted a regular course of study in an teaching department of the AMALTAS UNIVERSITY, DEWAS and seeks admission to an examination of the University as such.
- 1.2 "Ex-student /Repeater candidate" means a person, who was admitted to an examination as a regular candidate and was not declared successful thereat or was not able to appear in the examination though the admission card was correctly issued to him by the University and seeks admission again to the said examination.
- 1.3 "Detained Candidate" means the candidate who has taken admission in the University as a regular student but he has not been permitted to appear in the examination due to shortfall of attendance, indiscipline or by any other reason.
- 1.4 A "regular course of study" means:
- 1.4.1 In case of the student pursuing Medicine and Dentistry course, attendance should be at least seventy five percent of lectures and eighty five percent of practical and clinicals conducted separately. This will vary according to the apex controlling authority norms at different times.
- 1.4.2 In case of students pursuing course of other faculties should attend the theory and practical classes as prescribed by governing council.
- 1.4.3 Courses where no governing council exist student should attend 75% theory class and 85% of Practical Class.
- 1.5 "Forwarding officer" means: The Principal of the college/HOD where the candidate has prosecuted a regular course of study. Attested means attested by the forwarding officer.

2. ADMISSION OF A REGULAR CANDIDATE TO AN EXAMINATION OF THE UNIVERSITY:

- 2.1 Candidate can get admission in regular course, provided they have applied in the course, College and got selected. Also the regular candidates must possess the minimum academic

qualification for admission to the examination to which he seeks admission and has prosecuted a regular course of study for that examination.

2.2 Where a candidate offers an additional/optional subject for an examination in accordance with the provisions of the Ordinance relating to the examination, the minimum attendance requirement shall apply equally in case of such additional subject.

2.3 In computing the attendance for fulfilment of the condition regarding prosecution of a regular course of study;

2.3.1 Attendance at lectures delivered and practical/clinical/ sessional, if any held during the academic session shall be counted.

2.3.2 Attendance shall be calculated from the date of commencement of course.

2.3.3 Attendance by a regular candidate in a higher class shall be counted toward percentage of attendance for the examination of the lower class to which he may revert as a result of his failure to pass in the second/supplementary examination.

2.3.4 Attendance at N.C.C./N.S.S Camp during the session shall be taken as full attendance at Lectures/Practical on each day of camp and the days of journey to such camp.

2.3.5 Participation as a member of a University/College team in any inter University or Inter-Collegiate competition shall be taken as full attendance on the days of such competition and the days of journey for participation therein.

2.4 For special reasons such as prolonged illness deficiency in percentage of attendance not exceeding ten percent of the total number of lectures delivered and practical/clinical/sessional held in each subject may be condoned by the Vice Chancellor.

2.5 A regular candidate eligible for an examination shall submit their examination form on or before the last date notified by the Controller of Examination.

2.5.1 Submit an examination form for appearing to the examination through the Dean/Principal/Head of the University Teaching Departments indicating the subject in which he desires to present himself for the examination.

2.5.2 Pay along with the examination form, the fee prescribed for the examination concerned together with a fee for the supply of marks obtained by him/her in each paper at the examination.

2.6 The head of Institute shall forward the application submitted by regular candidates together with the examination fee and marks fee to Controller of Examinations on or before the last

date notified for the purpose by the University. In case of each application, the Head of Institutions, shall certify that the candidate;

- 2.6.1 Possesses the minimum academic qualification as prescribed by Regulatory Body AMALTAS UNIVERSITY, DEWAS, for appearing at the examination to which he seek admission.
- 2.6.2 Is having good conduct.
- 2.7 The Head of the Institutions/college, concerned shall send to the Controller of Examinations at least three weeks before the commencement of the examination concerned three separate lists as detailed below :-
 - 2.7.1 List A: List of those candidates who have full filled the minimum criteria of prescribe attendance (Clause 1.4).
 - 2.7.2 List B: List of those candidates whose attendance is short by not more than 10% for condonation by the Vice Chancellor, the Principal/Head of the Institutions concerned are required to give specific reasons for condonation of shortage along with their recommendation.
 - 2.7.3 List C: List of those candidates whose shortage of attendance exceeds 10% and who are to be debarred from appearing at the examination.
- 2.8 The Head of the institutions/college may detain a regular candidate from taking an examination, if he does not pay out standing college dues, or does not return the college property and all the articles and uniforms issued to him or does not pay the cost there of in case of loss, within one month preceding the examination or if the conduct of the student has been unsatisfactory between the time of submission of his application form to the Registrar for admission to the examination and the date of the commencement of the examination.
However, this detention (on grounds other than shortage of attendance) must be notified by Board of Studies.

3. ADMISSION OF AN EX-STUDENT/REPEATER CANDIDATE TO EXAMINATIONS OF THE UNIVERSITY:

- 3.1 No ex-student /repeater candidate shall be admitted to an examination of the University unless he/she submits with his/her application for appearing in the examination:

- 3.1.1 The statement of marks (in original) obtained by him/her at the said examination issue by the University together with an attested copy thereof, or
- 3.1.2 In case he was duly admitted to the said examination as a regular candidate but could not appear thereat, a certificate from the Principal/Head of the College last attended by him showing the year, the roll number and the examination to which he was admitted as a regular candidate.
- 3.2 No person shall be admitted as an ex-student/repeater candidate at any examination in the various faculties if he has failed to secure the minimum marks required for passing in the sessional. In case of repeater student the norms of Statutory Bodies will always be followed.
- 3.3 An ex-student/repeater candidate for an examination shall:
 - 3.3.1 Submit through the Head/Principal of the college, wherein he had prosecuted regular course of study, an application for admission to the examination in the prescribed form on or before the last date notified by the University and specify therein.
 - 3.3.1.1 Whether he/she is a candidate for the full examination or for supplementary examination.
 - 3.3.1.2 The subject or subjects in which he/she desires to present himself/herself for the examination.
 - 3.3.2 Submit with his application evidence of having been admitted to the examination earlier as required in paragraph 3.1 above.
 - 3.3.3 Attach with his application for admission to the examination, his/her latest passport size photograph duly attested by the forwarding Officer.
 - 3.3.4 Pay the fee prescribed for the examination together with the additional fee as prescribed by university for the statement of marks obtained in each paper at the examination. Fees shall be paid through crossed Bank Draft in favour of University or in any other manner prescribed by the University.
- 3.4 An ex-student/repeater candidate shall offer the subjects or optional papers which he/she had previously offered as a regular candidate unless on account of a change in the scheme of examination the subject/paper offered by him earlier ceases to be a part of the scheme of examination or syllabus for the examination and he is permitted by the University to offer instead a different subject or paper.

- 3.5 An ex-student/repeater candidate will be required to appear in the examination in accordance with syllabus specifying the scope of studies in different subjects notified in the University.
- 3.6 Every ex-student/repeater candidate shall appear at the examination center at which the regular candidates from the college in which he had prosecuted a regular course of study shall be appearing. Provided that the Registrar may, for sufficient reasons, require or allow a candidate to change his/her Examination Center.
- 3.7 In the event of change of Regulations, scheme and contents in the Courses and introductions of revised schemes, the old Regulations shall continue for two academic years or four University Examinations.
- 3.8 The students of old scheme will be permitted to appear in the University Examination for next two academic years or four University Examinations to complete the respective subjects, failing which the students shall come under the new scheme.

4. **GENERAL CONDITIONS APPLICABLE TO ALL CANDIDATES:**

- 4.1 No candidate shall be allowed to peruse more than one degree examination or more than one degree courses simultaneously in the same academic year.
- 4.2 A candidate who has passed the Bachelor's Degree Part I, or Part II Examination or the previous examination for a Master's Degree of another University may, with the permission of the Vice Chancellor be admitted to the next higher examination of the University for the Degree concerned provided the course offered by the candidate at such other University is equivalent to the course of the University for the Corresponding Examination. However, this clause shall be applicable to the courses which are notified in the university. The said transfer can only be allowed if candidate gets permission from competent government authority/Statutory body.
- 4.3 No person who has been expelled or rusticated from any college or University or has been debarred from appearing at a University Examination shall be admitted to an examination during the period for which the sentence is in operation.
- 4.4 The Controller of Examination shall issue an admission card in favour of a candidate if;
- 4.4.1 The application of the candidate is complete in all particulars in accordance with the provisions applicable to him/her and in order.

- 4.4.2 The candidate is eligible for admission to examination, and
- 4.4.3 The fees as prescribed have been paid by the candidate.
- 4.5 The admission card issued in favour of a candidate and also the permission given to candidate to appear at an examination may be withdrawn if it is found that:
- 4.5.1 The admission card was issued or permission was given through mistake and the candidate was not eligible to appear in the examination.
- 4.5.2 Any of the particulars/vital information given or documents submitted by the candidate in or with the application for enrolment, admission to a Institution or admission to an examination is false or incorrect.
- 4.6 The Registrar may, if he is satisfied that an admission card has been lost or destroyed grant a duplicate admission card on payment of a further fee, as prescribed. Such card shall show at a prominent place the word "Duplicate".
- 4.7 A candidate shall not be admitted into the Examination hall unless he/she produces the admission card before the Superintendent of the Examination Center or the invigilator or satisfies such Officers that it shall be produced. A candidate shall produce his/her admission card whenever required by the Superintendent or the invigilator.
- 4.8 In the Examination Hall the candidate shall be under the disciplinary control of the Superintendent of the Center and he/she shall obey his/her instructions. In the event of a candidate disobeying the instructions of the Superintendent or his/her indisciplined conduct or insolent behaviour towards the Superintendent or any invigilator, the candidate may be excluded from that particular day's examination and if he/she persists in misbehaviour he may be excluded from the rest of the examination by the Superintendent of the Center.
- 4.9 If a candidate acts in a violent manner or uses force or makes a display of force towards the Superintendent or any invigilator at the center or in its precincts endangering the personal safety of either of them or acts in a manner preventing to the authorities in the discharge of their duties, the Superintendent may expel the candidate from the center and he may take help from security agencies/police.
- 4.10 If a candidate brings any dangerous weapon within the precincts of the examination center he may be expelled from the center and/or handed over to the Police by the Superintendent.
- 4.11 A candidate expelled on any of the grounds mentioned in (4.9) or (4.10) above will not be allowed to appear in the subsequent papers.

4.12 In every case where action is taken by the Superintendent under (4.9), (4.10) or (4.11) above, a full report shall be sent to the University and the Board of Management may according to the gravity of the offence, further punish a candidate by cancelling his/her examination and/or debaring him from appearing at the examinations of the University for one or more years after giving the candidate an opportunity to show cause and considering any explanation submitted by the candidate.

4.13

4.13.1 The candidate may be debarred from appearing at the examination; If a candidate is found guilty of using or attempting to use or having used unfair means at an examination such as copying book or notes or from the answer of some other candidate or helping or receiving help from any other candidate or keeping with him in the examination hall material connected with the examination or in any other manner whatsoever, the Board or the Committee on use of unfair means appointed for the purpose by the Board may cancel his examination and also debar him from appearing at the examination of the University for one or more years according to the nature of the offence.

4.13.2 The University may cancel the examination of a candidate and /or debar him/ from appearing at an examination of the University for one or more years. If it is discovered after words that the candidate was in any manner guilty of misconduct in connection with his/her examination and/or was instrumental in or had abetted the tempering of University records including the answer -books, mark sheets, result-charts, diplomas and the like.

4.13.3 The Board may cancel the examination of a candidate and/or debar him/her from appearing at an examination of the University for one or more years, if it is discovered afterwards that the candidate had obtained admission to the examination by misrepresenting facts or by submitting false or forged certificate documents.

4.13.4 When the University intends to award any of the aforesaid penalties under clause (4.13.1), (4.13.2) or (4.13.3) above it shall give the candidate concerned an opportunity to show cause in writing within fifteen days of the issue of such "show cause" letter as to why the proposed penalty may not be imposed on him and shall consider the explanation, if any, if filed within the specified time before awarding the penalty.

4.14 A candidate, who is unable to present himself for an examination or a part due to sickness or

other cause there of shall not be entitled to any refund of his/her fees. Provided that, the Vice Chancellor may in a case in which he is satisfied about the genuineness, or merit of it, order for adjustment of the following portion of the fee towards the immediately next examination.

4.14.1 Examination Fee after deduction of 50%.

4.14.2 Full Fee for statement of marks.

Others fees paid by the candidate shall lapse to the University. Application for such adjustment from a candidate accompanied by a Medical Certificate of illness, if applicable must be sent so as to reach the Registrar not earlier than 15 days and not later than 30 days from the date of commencement of the examination at which the candidate was to appear.

Provided however, that a candidate shall not be entitled to the adjustment of examination fee mentioned in the foregoing paragraph if he/she changes the Faculty or his/her subject in case of Post-graduate examination.

4.15 The entire fees paid by a candidate whose application for appearing at an examination is cancelled on account of producing fraudulent documents or giving false particulars shall stand forfeited.

4.16 A candidate whose result has been declared may apply to the Registrar in the prescribed form within twenty days of the declaration of his result for the revaluation of any of his answer books. Provided also that, no revaluation shall be allowed in case of scripts of practical, field work, sessional work test and thesis submitted in lieu of a paper at the examination.

4.17 A candidate, who has passed any Final Degree Examination may, after the declaration of his result and before the date of the next convocation apply to the Registrar for a Provisional Certificate of passing the examination of the University. Such application shall be accompanied by a fee, as prescribed by the University.

4.18 No Person, who is under sentence of expulsion or rustication from an Institution, and is debarred from appearing at an examination of the University for any period of time, shall be granted a Migration Certificate during the period for which the sentence is in operation.

4.19 Duplicate of University Degree/Diplomas Certificates shall not be granted except in cases in which the Vice Chancellor is satisfied by the production of an affidavit on a stamped paper of

proper value required by Law for the time being in force, that the applicant has real need for duplicate. In such cases, a duplicate of the Degree/Diploma may be granted on receipt of fee as prescribed by the University.

- 4.20 The names of first 10% to a maximum of ten successful candidates in each regular course who obtain first division in first attempt examination, other than second full examination, who obtain First Division shall be declared in Order of Merit for each class/subject as the case may be.
- 4.21 Grace marks as given by Statutory Bodies norms and/or as prescribed in respective ordinance.
- 4.22 The Vice Chancellor may award one grace mark in case the candidate is failing by one mark or missing a Division by one mark. Where the deficiency is not condoned, one mark shall nowhere be added. Provide that, the benefit under this paragraph shall not be allowed to enable a candidate to get the benefit under paragraph 4.20.
- 4.23 The scope of studies in different subjects for an examination shall be as prescribed by the University from time to time and printed in the prospectus for the examination concerned.
- 4.24 There shall be a second full examination as far as possible in August/September or as notified on university website every year for candidates, who have failed earlier or having been admitted to the examination were unable to appear in the any teaching department/Subject of AMALTAS UNIVERSITY, DEWAS, provided the examination concerned is not conducted on a Semester basis. Candidates who are declared eligible to appear at Supplementary Examination shall also be eligible to appear as supplementary candidates in these examinations. Every candidate desirous of appearing at the Second Examination shall submit an application as indicated in this Ordinance with the requisite fees. The results of candidates appearing in the Second Examination shall be declared in accordance with the provisions of the Ordinances.
- 4.25 Such candidates as are eligible to appear in the Second Examination may be provisionally admitted to the next higher class in an Institution and their attendance in the higher class shall be counted in cases they are declared successful at the Second Examination. If the candidate fails at the Examination, the admission to the higher class shall be cancelled and the candidate shall revert to the lower class.

4.26
Vice-Chancellor
University

The following shall be eligible to appear at the Supplementary Examination

- 4.26.1 Candidates who have failed at the examination.
- 4.26.2 Candidates for examinations other than those enumerated in (4.26.1) above, who are declared eligible to appear at a Supplementary Examination in accordance with the provisions of the respective examination Ordinance.
- 4.27 Except when provided otherwise in the Ordinance or the Regulation concerned, a candidate who has been declared eligible for a Supplementary Examination may appear as a Supplementary Examination Candidate in the two examinations immediately following the examination in which he was declared to be so eligible and thereafter he shall be required to appear in all the papers at the next examination.
- 4.28 A candidate appearing in the Supplementary Examination shall be declared to have passed the examination if he secures the minimum pass marks in the subject or group as the case may be, except when provided otherwise in the examination Ordinance concerned. Such a candidate shall be deemed to have obtained only the minimum passing marks in the subject or group as the case may be and such minimum passing marks shall be taken into account in determining the division at the examination.
- 4.29 Members (other than local members) of the Authorities, Bodies and Committees of the University, Moderators, Examiners, Inspectors etc. appointed to inspect colleges or Centers of Examination shall be paid travelling allowance and daily allowance for attending meetings or for journeys connected with examinations or the affairs (other than Convocation) of the University, at the rates and subject to the conditions, being paid to other Authorities, Officers, Teachers and employees of the University from time to time as prescribed in the Ordinances/Rules.